

STATE OF NEW YORK

474--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. WOERNER -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the parks, recreation and historic preservation law, in relation to increasing the penalties for operating a snowmobile while intoxicated

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (a), (b) and (e) of subdivision 1 of section
2 25.24 of the parks, recreation and historic preservation law, paragraphs
3 (a) and (b) as amended by chapter 311 of the laws of 2007 and paragraph
4 (e) as added by chapter 629 of the laws of 1998, are amended to read as
5 follows:
6 (a) No person shall operate a snowmobile upon a street, highway,
7 public trails, lands, bodies of water, or private property of another
8 while [~~his or her~~] their ability to operate such snowmobile is impaired
9 by the consumption of alcohol. (1) A violation of this subdivision shall
10 be an offense and shall be punishable by a fine of not less than two
11 hundred fifty dollars nor more than three hundred fifty dollars, or by
12 imprisonment in a penitentiary or county jail for not more than fifteen
13 days, or by both such fine and imprisonment. (2) A person who operates a
14 snowmobile in violation of this subdivision after being convicted of a
15 violation of any subdivision of this section within the preceding five
16 years shall be punished by a fine of not less than five hundred dollars
17 nor more than fifteen hundred dollars, or by imprisonment of not more
18 than thirty days in a penitentiary or county jail or by both such fine
19 and imprisonment.
20 (b) (1) No such person shall operate a snowmobile upon a street, high-
21 way, public trails, lands, bodies of water, or private property of
22 another while [~~he or she~~] such person has .08 of one per centum or more

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

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1 by weight of alcohol in [~~his or her~~] their blood, breath, urine, or
2 saliva, as determined by the chemical test made pursuant to the
3 provisions of subdivision six of this section.

4 (2) No such person shall operate a snowmobile upon a street, highway,
5 public trails, lands, bodies of water, or private property of another
6 while such person has .18 of one per centum or more by weight of alcohol
7 in their blood, breath, urine, or saliva, as determined by the chemical
8 test made pursuant to the provisions of subdivision six of this section.

9 (e) (1) A violation of subparagraph one of paragraph (b), or paragraph
10 (c)[~~7~~] or (d) of this subdivision shall be a misdemeanor and shall be
11 punishable by imprisonment in a penitentiary or county jail for not more
12 than ninety days, or by a fine of not less than three hundred fifty
13 dollars nor more than five hundred dollars, or by both such fine and
14 imprisonment.

15 (2) A person who operates a snowmobile in violation of subparagraph
16 one of paragraph (b), or paragraph (c)[~~7~~] or (d) of this subdivision
17 after having been convicted of a violation of subparagraph one of para-
18 graph (b), of paragraph (c)[~~7~~] or (d) of this subdivision, or of operat-
19 ing a snowmobile while intoxicated or while under the influence of
20 drugs, within the preceding ten years, shall be guilty of a misdemeanor
21 and shall be punished by imprisonment for not more than one year, or by
22 a fine of not less than five hundred dollars nor more than fifteen
23 hundred dollars, or by both such fine and imprisonment.

24 (3) A person who operates a snowmobile in violation of subparagraph
25 one of paragraph (b), or paragraph (c)[~~7~~] or (d) of this subdivision
26 after having been twice convicted of a violation of subparagraph one of
27 paragraph (b), or paragraph (c)[~~7~~] or (d) of this subdivision, or of
28 operating a snowmobile while intoxicated or under the influence of
29 drugs, within the preceding ten years, shall be guilty of a class E
30 felony and shall be punished by a fine of not less than five hundred
31 dollars nor more than five thousand dollars or by a period of imprison-
32 ment as provided in the penal law, or by both such fine and imprison-
33 ment.

34 (4) (i) A violation of subparagraph two of paragraph (b) of this
35 subdivision shall be a misdemeanor and shall be punishable by imprison-
36 ment in a penitentiary or county jail for not more than one hundred
37 eighty days, or by a fine of not less than seven hundred dollars nor
38 more than one thousand dollars, or by both such fine and imprisonment.

39 (ii) A person who operates a snowmobile in violation of subparagraph
40 two of paragraph (b) of this subdivision after having been convicted of
41 a violation of subparagraph one or two of paragraph (b), or paragraph
42 (c) or (d) of this subdivision, or of operating a snowmobile while
43 intoxicated or while under the influence of drugs, within the preceding
44 ten years, shall be guilty of a class E felony and shall be punished by
45 a fine of not less than one thousand dollars nor more than three thou-
46 sand dollars or by a period of imprisonment as provided in the penal
47 law, or by both such fine and imprisonment.

48 (iii) A person who operates a snowmobile in violation of subparagraph
49 two of paragraph (b) of this subdivision after having been twice
50 convicted of a violation of subparagraph one or two of paragraph (b), or
51 paragraph (c) or (d) of this subdivision, or of operating a snowmobile
52 while intoxicated or under the influence of drugs, within the preceding
53 ten years, shall be guilty of a class D felony and shall be punished by
54 a fine of not less than one thousand dollars nor more than ten thousand
55 dollars or by a period of imprisonment as provided in the penal law, or
56 by both such fine and imprisonment.

§ 2. Section 25.24 of the parks, recreation and historic preservation law is amended by adding a new subdivision 4-a to read as follows:

4-a. Sentencing; previous convictions. When sentencing a person for a violation of paragraph (b), (c) or (d) of subdivision one of this section pursuant to subparagraph two or three, or clause (ii) or (iii) of subparagraph four of paragraph (e) of subdivision one of this section, the court shall consider any prior convictions the person may have for a violation of subdivision two, two-a, three, four or four-a of section eleven hundred ninety-two of the vehicle and traffic law or subdivision two of section forty-nine-a of the navigation law within the preceding ten years. When sentencing a person for a violation of subparagraph two of paragraph (a) of subdivision one of this section, the court shall consider any prior convictions the person may have for a violation of any subdivision of section eleven hundred ninety-two of the vehicle and traffic law or subdivision two of section forty-nine-a of the navigation law within the preceding five years.

§ 3. This act shall take effect on the ninetieth day after it shall have become a law.